

26STCV14046 26STCV14046

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-30

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Case Number: 26STCV14046 Hearing Date: July 30, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:05 PM on July 29, 2026.

Rule of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No later than 4:00 p.m. on July 29, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court’s receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

If all parties submit on the tentative ruling, no appearance will be necessary: the Court will set a further case management conference in approximately 90 days to account for an amended complaint and response thereto, and the clerk will provide notice.

Plaintiffs alleged that Defendants sold Plaintiffs inventory, equipment and other personal property in connection with a commercial lease. Plaintiffs were sued by the former tenants, who claimed that Plaintiffs did not have a right to sell or otherwise dispose of the inventory, equipment and other personal property. Plaintiffs settled the dispute and now sued Defendants for indemnity.

Defendants A.R.D. Services, Inc. and Amir Damavandi demur to the First Amended Complaint and move to strike portions thereof.

TENTATIVE RULING

Defendants A.R.D. Services, Inc. and Amir Damavandi’s demurrer to the First Amended Complaint is SUSTAINED with leave to amend as to the sole cause of action.

Based on the ruling on the demurrer, the motion to strike is MOOT.

Plaintiffs are given 30 days' leave to amend.

ANALYSIS

Demurrer

Request For Judicial Notice

Defendants request that the Court take judicial notice of the following:

Complaint (including Exhibit 5 record; Evid. Code, claims asserted in thereto - the lease for 920 S. Maple Avenue) filed August 16, 2021 in Michael Levine, Inc., et al. v. A.R.D. Services, Inc., et al., U.S. Bankruptcy Court, Central District of California, Adv. Proc. No. 2:21-ap 01169-ER, Doc. 29

Defendants Sohrab Issakharian's and Connect Apparel, LLC's Answer to Complaint and Crossclaim Against A.R.D. Services, Inc., filed in Adv. Proc. No. 2:21-ap-01169-ER

The requests are GRANTED per Evid. Code § 452(d)(court records).

Meet and Confer

The Declaration of Andrew Ritholz that Defendants' counsel satisfied the meet and confer obligation set forth in Code Civ. Proc. § 430.41.

Discussion

Defendants A.R.D. Services, Inc. and Amir Damavandi demur to the First Amended Complaint as follows:

1. Sole Cause of Action (Implied Equitable Indemnity).

The First Amended Complaint alleges as follows:

10. At all relevant times, Plaintiffs were engaged in the business of fabric sales and related commercial operations in Los Angeles County, California.

11. Defendants engaged in leasing commercial retail space to Plaintiffs.

12. At the time Plaintiffs entered into the certain leases with Defendants, Defendants sold certain inventory, equipment and other personal property, tangible and non-tangible (the "PROPERTY") located at or associated with the leased premises to Plaintiffs. Defendants issued an invoice to Plaintiffs for the sale of the PROPERTY, which Plaintiffs paid. A true and correct

copy of this invoice is attached hereto as Exhibit "A".

13. Subsequent to the sale of the PROPERTY by Defendants to Plaintiffs, the prior tenant of the leased premises filed suit against Plaintiffs and Defendants herein, claiming that Plaintiffs did not have a right to sell or otherwise dispose of the PROPERTY, claiming damages of approximately \$6,000,000.

14. At the time Plaintiffs took possession of the PROPERTY, they neither knew or had any reason to know that any third party had a claim to the PROPERTY, or the Defendants did not have marketable title to the PROPERTY or the right to sell it.

15. The lawsuit by the prior tenant was originally venued in the District Court for the Central District of California (case number 2:21-cv-03668-MWF-SK) (the "District Court Case"). It was later re-filed in the Bankruptcy Court for the Central District of California (Adversary Proceeding case number 2:21-ap-01169-ER) (the "Adversary Proceeding").

16. Plaintiffs tendered the defense of both the District Court Case and Adversary Proceeding to Defendants, but Defendants refused the tender.

17. Plaintiffs filed a cross-claim against Defendants herein in the Adversary Proceeding, seeking the same relief as it is seeking here, namely equitable indemnity and contribution.

18. In the middle of 2025, after nearly 5 years of litigation, Plaintiffs settled the Adversary Proceeding with the Chapter 7 Trustee, who was the plaintiff in that action. Since the Chapter 7 Trustee, and therefore the bankruptcy estate, was no longer implicated in the Adversary Proceeding, which after the settlement involved only the competing cross-claims between the parties hereto, the Bankruptcy Court lost jurisdiction over the case. The Adversary Proceeding was thus dismissed, without prejudice.

19. Plaintiffs allege that any defects, irregularities, statutory violations, or wrongful conduct relating to the PROPERTY which was sold and transferred by Defendants to Plaintiffs were caused by the acts, omissions, and/or misconduct of Defendants, without the knowledge of Plaintiffs.

20. Plaintiffs did not participate in, direct, or control any wrongful conduct, if any, relating to the acquisition, handling, or disposition of the PROPERTY.

21. As a result of Defendants' conduct in the sale of the PROPERTY to Plaintiffs, Plaintiffs have been exposed to claims and demands, and have incurred substantial damages, including attorneys' fees and costs of suit, in defending and ultimately settling the District Court Case and the Adversary Proceeding.

22. Plaintiffs bring this action to complete its litigation of the cross-claims previously brought in the Adversary Proceeding against Defendants.

...

24. Plaintiffs are informed and believe, and on that basis allege, that any and all damages, injuries, or losses arising out of the sale and transfer of the PROPERTY from Defendants to Plaintiffs were directly and proximately caused by the acts, omissions, and/or wrongdoing of Defendants, to the detriment of Plaintiffs.

(1AC, ¶¶ 13 – 22, 24.)

It is well settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff's injury. (Citations omitted.) With limited exception, there must be some basis for tort liability against the proposed indemnitor. (Citation omitted.) "Generally, it is based on a duty owed to the underlying plaintiff [citations], although vicarious liability [citation] and strict liability [citation] also may sustain application of equitable indemnity. In addition, implied contractual indemnity between the indemnitor and the indemnitee can provide a basis for equitable indemnity. [Citation.]" (Citation omitted.)

(*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036, 1040 [italics in original].)

Here, Plaintiffs do not articulate the underlying theory whereby Defendants should be considered joint tortfeasors as to the former tenant who claimed the right to the inventory, equipment and other personal property. Plaintiffs must articulate an underlying legal theory whereby Defendants herein are liable for defects, irregularities, statutory violations or wrongful conduct which caused Plaintiffs to incur damages, settlement payments, attorney fees, expenses and costs incurred in their defense of the District Court Case and the Adversary Proceeding. (1AC, ¶¶ 19, 27.) The Court is not saying that Defendants are blameless. Rather, Plaintiffs must articulate what Defendants did wrong under a cognizable legal theory.

The demurrer to the sole cause of action is SUSTAINED with leave to amend.

Motion To Strike

Based on the ruling on the demurrer, the motion to strike is MOOT.

Plaintiffs are given 30 days' leave to amend.